

CV-25-008348 GOMEZ, ARMANDO vs FRITOLAY INC - a) Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Special Interrogatories (Set One); Request for Monetary Sanctions in the Amount of \$5,575.00 - GRANTED; b) Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Form Interrogatories - General (Set One); Request for Monetary Sanctions in the Amount of \$5,575.00 - GRANTED; c) Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Form Interrogatories - Employment Law (Set One); Request for Monetary Sanctions in the Amount of \$5,575.00 - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a-c) On July 24, 2026, Plaintiff filed five motions to compel regarding discovery. Today, the Court addresses three of them. First, Plaintiff moves for an order compelling Defendant to further respond to Plaintiff's Special Interrogatories (Set One) and for monetary sanctions in the amount of \$5,575.00 against Defendant and its counsel. Second, Plaintiff moves for an order compelling Defendant to further respond to Plaintiff's Form Interrogatories – General (Set One) and for monetary sanctions in the amount of \$5,575.00 against Defendant and its counsel. Third, Plaintiff moves for an order compelling Defendant to further respond to Plaintiff's Form Interrogatories – Employment Law (Set One) and for monetary sanctions in the amount of \$5,575.00 against Defendant and its counsel. “ ‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291–1292.) Defendant failed to provide substantive responses to the interrogatories. Defendant objected to each interrogatory on the basis that Plaintiff was allegedly subject to an arbitration agreement. In its half-page response to the motion, Defendant states—unsupported by any declaration or exhibits—that Defendant subsequently located Plaintiff's acknowledgement regarding Defendant's Dispute Resolution Process and thus argues that its prior objections were properly asserted. Defendant provides no authority stating that a party may refuse to answer an interrogatory based on an objection that there allegedly exists a valid and enforceable arbitration agreement. The objection appears to be without merit and Defendant's failure to provide a substantive response is not in compliance with the code. Defendant actions were without substantial justification. The case was not stayed or ordered to arbitration. Defendant alleges it did not locate Plaintiff's assent to the alleged arbitration agreement until after it made the objections. Defendant never filed a motion to compel arbitration. In its response to the motion, Defendant states that it will provide responses by September 30, 2026—which is over nine months after the deadline the parties agreed to and also two weeks after the scheduled hearing—but nothing prevented Defendant from providing responses sooner. The motions to compel are GRANTED. Within 10 days of notice of the signed orders, Defendant shall provide complete further responses to Plaintiff's Special Interrogatories (Set One), to Plaintiff's Form Interrogatories – General (Set One), and to Plaintiff's Form Interrogatories – Employment Law (Set One). Pursuant to Code of Civil Procedure § 2030.300(d), the Court GRANTS monetary sanctions in the amount of \$3,000 against Defendant and its attorney of record, jointly and severally, in conjunction with Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Special Interrogatories (Set One); the Court GRANTS monetary sanctions in the amount of \$1,500 against Defendant and its attorney of record, jointly and severally, in conjunction with Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Form Interrogatories – General (Set One); and, the Court GRANTS monetary sanctions in the amount of \$1,500 against Defendant and its attorney of record, jointly and severally, in conjunction with Plaintiff's Motion to Compel Defendant Frito-Lay, Inc.'s Further Responses to Form Interrogatories – Employment Law (Set One). Defendant and its attorney are to pay the sanctions to Abramson Law Group within 20 days of service of the signed order. Because the work is duplicative, the Court awards six hours at \$500 per hour for the first motion, and three hours for the latter two motions. Further failures by Defendant are likely to lead to case-related sanctions. The Court will modify and sign the proposed orders Plaintiff submitted in connection with the motion. Plaintiff to give notice. (Code Civ. Proc., § 1019.5.) Discovery motions set for the 16th will be similarly handled. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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